

The existence of alternative remedies and deterrents establishes that absolute immunity will not place the President "above the law."⁴¹ For the President, as for judges and prosecutors, absolute immunity merely precludes a particular private remedy for alleged misconduct in order to advance compelling public ends.

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For the reasons stated in this opinion, the decision of the Court of Appeals is reversed, and the case is remanded for action consistent with this opinion.

So ordered.

CHIEF JUSTICE BURGER, concurring.

I join the Court's opinion, but I write separately to underscore that the Presidential immunity derives from and is mandated by the constitutional doctrine of separation of powers. Indeed, it has been taken for granted for nearly two centuries.¹ In reaching this conclusion we do well to bear in mind that the focus must not be simply on the matter of judg-

⁴¹The dissenting opinions argue that our decision places the President "above the law." This contention is rhetorically chilling but wholly unjustified. The remedy of impeachment demonstrates that the President remains accountable under law for his misdeeds in office. This case involves only a damages remedy. Although the President is not liable in civil damages for official misbehavior, that does not lift him "above" the law. The dissents do not suggest that a judge is "above" the law when he enters a judgment for which he cannot be held answerable in civil damages; or a prosecutor is above the law when he files an indictment; or a Congressman is above the law when he engages in legislative speech or debate. It is simply error to characterize an official as "above the law" because a particular remedy is not available against him.

¹Presidential immunity for official acts while in office has never been seriously questioned until very recently. *Ante*, at 750-752, n. 31. I can find only one instance in which, prior to our decision in *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971), a citizen sued a former President for acts committed while in office. A suit against Thomas Jefferson was dismissed for being improperly brought in Virginia, thus precluding the necessity of reaching any immunity issue. *Livingston v. Jefferson*, 15 F. Cas. 660 (No. 8,411) (CC Va. 1811).